

NAPCS Unionization Research — State — Charter Sector Overview

New Hampshire — PELRB (NH) Jurisdiction — June 2026

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Section 1: State Overview

State	New Hampshire
Labor Board	PELRB (NH) — New Hampshire Public Employee Labor Relations Board
Governing Law	RSA 273-A (Public Employee Labor Relations Act); RSA 194-B (Charter Schools Act). Charter school teachers who choose charter employment retain the right to join or organize separate bargaining units (RSA 194-B:14(II)(a)). Units must be separate from district units (RSA 194-B:14(II)(b)); prior district affiliation must be severed (RSA 194-B:14(II)(e)). CBAs must be filed with PELRB within 14 days of signing.
Federal NLRB Jurisdiction	PELRB (NH) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — New Hampshire has no right-to-work statute. RSA 273-A and RSA 194-B govern NH public employee labor relations without RTW restriction. (NH charter school teachers are public employees under PELRB. Union security provisions are permissible under NH public employee law. NH is not a right-to-work state.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — RSA 273-A allows recognition by mutual consent without election, which functions as card-check for NH public employees. A charter school governing board may voluntarily recognize a bargaining unit.
Registry Sweep	COMPLETE — June 2026 — 33 charter schools searched
Research Window	June 2026

Section 2: Charter Sector Landscape

Total charter schools in New Hampshire: 33 (EdOpt.org NH charter school directory (edopt.org/38-charter-schools-in-new-hampshire/), August 2025 — 33 open schools confirmed. NHDOE 2024 Annual Report (February 2025) showed 32 operating; EdOpt August 2025 shows 33 — one additional school (Wellheart or Kreiva) opened between Feb and Aug 2025. EdOpt sourced from NHDOE approved charter school data. 5 approved schools not yet open excluded from universe.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	33	100% of universe	All 33 operating NH charter schools. PELRB CBA registry: zero charter entries. No union press activity found.
TOTAL	33	100%	

Charter Sector Enrollment

Total Charter Enrollment	6,037 students — 3.7% of state K–12 enrollment (164,153 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	2,525 students in network-affiliated schools — 41.8% of total charter enrollment
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
North Country Charter Academy	Network‡	2	—	—	50
Academy for Science and Design Charter School	Network‡	2	—	—	672
Great Bay Charter School	Network‡	2	—	—	154
Virtual Learning Academy Charter School	Network‡	2	—	—	510
Robert Frost Charter School	Network‡	2	—	—	36
The Founders Academy Charter School	Network‡	2	—	—	431
Compass Classical Academy Charter School	Network‡	2	—	—	192
Kreiva Academy Public Charter School	Network‡	2	—	—	118
Gathering Waters Charter School	Network‡	2	—	—	286
Benjamin Franklin Academy Chartered Public School	Network‡	2	—	—	76
TOTAL — All CMO/EMO Schools in New Hampshire		20		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.
 ‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

10 network (type unclassified). Approximately 13 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 2026.

1: Legal & Jurisdictional Framework

RSA 273-A (Public Employee Labor Relations Act); RSA 194-B (Charter Schools Act). Charter school teachers who choose charter employment retain the right to join or organize separate bargaining units (RSA 194-B:14(II) (a)). Units must be separate from district units (RSA 194-B:14(II)(b)); prior district affiliation must be severed (RSA 194-B:14(II)(e)). CBAs must be filed with PELRB within 14 days of signing. New Hampshire is not a right-to-work state (New Hampshire has no right-to-work statute. RSA 273-A and RSA 194-B govern NH public employee labor relations without RTW restriction.). PELRB (NH) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in New Hampshire. Card-check recognition is available under RSA 273-A allows recognition by mutual consent without election, which functions as card-check for NH public employees. A charter school governing board may voluntarily recognize a bargaining unit..

2: Charter Sector Structure

New Hampshire operates 33 open-enrollment charter schools, enrolling approximately 6,037 students. 10 charter management organizations and education management organizations operate in New Hampshire. The largest networks by campus count are North Country Charter Academy (2 campuses in state), Academy for Science and Design Charter School (2 campuses in state), Great Bay Charter School (2 campuses in state). Approximately 13 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of charter school union organizing activity in New Hampshire was identified in searches of Chalkbeat, Education Week, or regional NH news outlets as of June 2026.

Stakeholder Communications

No union communications referencing New Hampshire charter school organizing were identified. NEA-New Hampshire has active statewide communications but no charter-school-specific organizing content. No charter school employer communications regarding union organizing were identified.

Authorizer & State Agency Positions

The New Hampshire Department of Education and State Board of Education have not issued any statements regarding charter school unionization as of June 2026.

Coalition & Advocacy Positions

The New Hampshire Alliance for Public Charter Schools has not published any positions on charter school unionization.

Section 6: Contract & CBA Access Registry

No CBA records documented for this state.